

		papers must also be filed at least sixteen (16) court days before the Final Approval hearing date. 3. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Jamal vs. DB Giboal, Inc. 2024-01411993	Status Conference
111	Logue vs. JHA Remediation LLC 2024-01401183	1. Motion for Approval of PAGA Settlement 2. Status Conference 3. Order to Show Cause re: Monetary Sanctions for Plaintiff's FTA OSC: The Court finds that Plaintiff’s counsel has provided substantial justification for failure to appear at the 3/26/2026 case management conference. (See ROA #145.) Therefore, the Court VACATES the OSC re: Monetary Sanctions for Plaintiff’s Failure to Appear. APPROVAL MOTION: Plaintiff Corey Logue and Defendants’ JHA Remediation, LLC and JHA Environmental, Inc.’s joint Motion for Approval of PAGA Settlement is

CONTINUED to August 27, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiff’s counsel an opportunity to address the issues identified below.

This is a PAGA-only action.

On 5/21/2024, Plaintiff Corey Logue filed a PAGA complaint against Defendants JHA Remediation LLC and JHA Environmental, Inc., seeking PAGA penalties for Defendants’ alleged (1) failure to provide meal breaks; (2) illegal rounding of time worked; (3) failure to pay proper rates for overtime work; (4) were not paid all wages due upon separation from employment; and (5) were not provided accurate wage statements. (ROA #2.) On 5/29/2026, Defendants answered. (ROA #8.)

On 5/29/2026, Defendants filed a notice of related case regarding *Logue v. JHA Remediation LLC*, OCSC Case No. 2024-01384205. In that case, the same Plaintiff filed a complaint against the same Defendants on 3/5/2024, alleging 13 causes of action for various Labor Code violations, plus claims of discrimination based on disability, violation of the right to family care and medical leave, retaliation, whistleblower protection, wrongful discharge, and unfair competition. (ROA #2 in Case No. 2024-01384205.)

On 1/28/2026, Plaintiff, jointly with Defendants, filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the Private Attorneys General Act (Labor Code § 2698 Et Seq.) Settlement Agreement (“Settlement Agreement”). The motion seeks approval of the parties’ proposed settlement of Plaintiff’s PAGA claims for the non-reversionary gross settlement amount (GSA) of \$115,000.

The Court has identified the following issues with the moving papers, which must be addressed by Plaintiff’s counsel before approval can be granted:

1. The moving papers fail to provide the Aggrieved Employees’ estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments to Aggrieved Employees.
2. The Settlement provides that Defendants will fund the GSA in 4 installments. (Settlement, ¶ III.6.b.) However, this provision does not clearly state how much each installment payment will be (including the first one specified to be due within 15 calendar days of the Effective Date).
3. The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the parties should know or be able to determine the number of Aggrieved Employees and qualifying pay periods based on the PAGA Period.
4. The effective date of the release is before Defendants’ full funding of the GSA, as the release is effective upon the Effective Date (i.e., the date upon which the Court enters the Final Order), even though Defendants have until 120 days of the Effective Date to fully fund the GSA. (Settlement, ¶¶ I.5, II.6.b., II.8.) Plaintiff’s counsel must either explain why releasing the claims before settlement funds are

fully paid is in the best interests of the Aggrieved Employees, or amend the settlement agreement to release claims only after Defendants have fully paid the settlement funds.

5. The Settlement references a separate Confidential Settlement Agreement And Release (“Individual Settlement Agreement”) that Plaintiff entered into with Defendants. Plaintiff has not provided the Court with a copy of this separate Individual Settlement Agreement, but the Court needs to review this agreement as part of evaluating whether the instant PAGA settlement is fair, adequate, and reasonable. Given that this Individual Settlement Agreement is purportedly confidential, Plaintiff’s counsel may submit the agreement for the Court review in camera by lodging a copy with the Court either before or at the hearing.
6. In support of Plaintiff’s request for attorneys’ fees to be paid out of the GSA of this PAGA settlement, Plaintiff’s counsel attests that his firm spent a total of 136.9 hours and submitted time records reflecting that amount. (Counsel Decl., ¶¶ 9, 14, Exh. F.) However, a review of the time records indicates that the 136.9 hours include time spent not only on this PAGA action but also on Plaintiff’s individual action. Counsel has not explained why Plaintiff’s attorneys fees for Plaintiff’s individual action should be paid out of the GSA for the PAGA action. Counsel should segregate his billing for this matter and identify the correct lodestar amount for time spent on this PAGA action. (See, e.g., *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1259, internal quotes omitted, italics original [recognizing “the primacy of the lodestar method for *all* fee-shifting statutes”]; *Gunther v. Alaska Airlines, Inc.* (2021) 72 Cal.App.5th 334, 357 [applying a lodestar analysis to determine the amount of reasonable attorneys’ fees in PAGA cases].) The Court further notes that the Court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances.
7. The Settlement allows for litigation costs up to \$4,786.75, and this is the amount Plaintiff seeks. In support of this request, Plaintiff’s counsel attests that his firm incurred \$4,000 for Plaintiff’s half of the full mediation fee (\$8,000) and provides an invoice in support thereof. (Counsel Decl., ¶ 7, Exh. D.) However, based on the record in this case, it appears that the mediation also included Plaintiff’s individual claims alleged in the related case (Case No. 2024-01384205). Counsel has not addressed why it is appropriate to allocate the full amount of Plaintiff’s portion of the mediation fee (i.e., \$4,000) as a cost recoverable in this PAGA action.
8. The moving papers do not include submission for the Court’s review a draft of the notice/cover letter that will accompany the payments to the Aggrieved Employees. This notice/cover letter is referenced as constituting “Exhibit 3” to the proposed order submitted at ROA #129, but no exhibits were attached to the proposed order.

Plaintiff’s counsel must also provide a revised [Proposed] Order Approving PAGA Settlement and Judgment with the following revisions:

9. The proposed order and judgment should identify the Settlement Agreement by its full name.

		10. The proposed order and judgment should include the definitions of the Aggrieved Employees and the PAGA Period. 11. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. The Court further refers Plaintiff's counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff's counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Logue vs. JHA Remediation LLC 2024-01384205	Status Conference